

22LBCV00495 22LBCV00495

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-11

Motion: DEFENDANTS' MOTION FOR ATTORNEY'S FEES

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Case Number: 22LBCV00495 Hearing Date: August 11, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

MARIA PARIZE, et al.,

Plaintiffs,

vs.

LAW

OFFICE OF T. MAE YOSHIDA, et al.,

Defendants.

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CASE NO: 22LBCV00495

[TENTATIVE]

ORDER RE: DEFENDANTS' MOTION FOR ATTORNEY'S FEES

Dept.

A

DATE:

August 11, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 09/14/2022

2nd

AMENDED COMPLAINT FILED: 02/25/2024

TRIAL:

None set

MOVING

PARTY: Defendants T. Mae

Yoshida; Law Office of T. Maye Yoshida; Shogo J. Garcia; and Law Offices of
Yoshida & Garcia

RESPONDING

PARTY: Plaintiffs Maria Parize and

Marco Parize

1. Background

This was an action for malicious prosecution. Plaintiffs Maria Parize and Marco Parize (collectively, "Plaintiffs") alleged that defendants Long Beach Memorial Medical Center; T. Mae Yoshida; Law Office of T. Maye Yoshida; Shogo J. Garcia; and Law Offices of Yoshida & Garcia prosecuted hospital liens against Plaintiffs without probable cause, causing Plaintiffs damages and costs.

On May 21, 2024, the court granted a special motion to strike the complaint pursuant to Code of Civil Procedure § 425.16.

2. Discussion

Defendants T.

Mae Yoshida; Law Office of T. Maye Yoshida; Shogo J. Garcia; and Law Offices of Yoshida & Garcia (collectively, "Movants") move for attorney's fees incurred at the trial level and on appeal. Movants contend that they are entitled to attorney's fees pursuant to Code of Civil Procedure § 425.16, subd. (c). In opposition, Plaintiffs contend that Movants are not entitled to attorney's fees because Movants were represented in this action by Defendant Shogo J. Garcia as a partner of Movants.

The court

finds Plaintiff's contention that Defendants waived fees incurred in the trial court proceedings lacks merit. (See, *Carpenter v. Jack in the Box Corp.* (2007) 151 Cal. App. 4th 454, 468.) The court further finds that the one-minute

delay in filing the motion was not prejudicial, and that a denial of the motion on this basis would be draconian and would not serve the ends of justice, particularly where Plaintiff granted a substantial extension of time to non-moving defendant. The court will therefore consider the motion on the merits.

Pursuant to

Code of Civil Procedure § 425.16, subd. (c)(1), a prevailing defendant in an anti-SLAPP motion to strike is entitled to their fees and costs. However, a party who represents themselves in pro per may not recover their fees and costs, even when that party is an attorney. (Trope v. Katz (1995) 11 Cal.4th 274, 292.) Where an attorney litigates on behalf of their own firm and its partners or associates who acted on the firm's behalf, the firm is considered to be representing itself and cannot recover its fees and costs. (Carpenter & Zuckerman, LLP v. Cohen (2011) 195 Cal.App.4th 373, 377-378.)

Movants

request the corrected amount of \$37,308, consisting of a total of 40.7 hours and \$14,488 for trial court proceedings, and 60.9 hours and \$22,820 for appellate proceedings. (Reply, p. 8; Garcia Decl., ¶ 8, emphasis added.)

An attorney

cannot form an attorney-client relationship with himself, nor can a law firm form an attorney-client relationship with its own partner or associate attorney acting on its behalf. (Sands & Associates v. Juknavorian (2012) 209 Cal.App.4th 1269, 1282.) Defendant

Garcia, by his own admission, seeks to recover fees that were, at least in part, incurred on his own behalf, and on behalf of his firm Law Offices of Yoshida & Garcia. Defendant Garcia

is undisputedly an attorney with the Law Offices of Yoshida & Garcia. Defendant Garcia declares that he is not a partner, member, shareholder, associate, employee, or independent contractor of the Law Office of T. Mae Yoshida, and has never been except for his employment as an associate there between 2015 and 2017. (Garcia Suppl. Decl., ¶ 2.) Fees incurred by Defendant Garcia in his own defense and the defense of Law Offices of Yoshida & Garcia are unrecoverable.

With respect

to fees incurred on behalf of Yoshida and the Law Office of T. Mae Yoshida, Movants cite Ramona Unified School Dist. v. Tsiknas (2005) 135 Cal.App.4th

510 (Ramona) for the proposition that where a defendant in an anti-SLAPP motion also represents other, non-affiliated defendants, their fees are recoverable. Ramona held that Trope does not preclude the award of attorney fees to a defendant who is an attorney and who rendered legal services to non-attorney co-defendants under an attorney-client relationship, merely because the attorney defendant was a codefendant with the nonattorney clients to whom she provided legal assistance. (Id., at p. 525.) The

court therefore concludes that fees attributable to the representation of Yoshida and the Law Office of T. Mae Yoshida are recoverable.

Based on an examination of the billing records provided, as well as Defendant Garcia's declaration, it is not possible for the court to determine what time was expended by Defendant Garcia in his own defense and the defense of Law Offices of Yoshida & Garcia, as opposed to in the defense of other defendants. However, based upon Exhibit A to the Garcia Declaration, the court finds his hourly rate of \$400 reasonable, the \$120 hourly rate of law clerk "MA" reasonable, and the total fees billed reasonable both at the trial court level and the appellate level for the defense of all represented defendants.

Based on the foregoing, the court exercises its discretion and will disallow recovery by Garcia and Law Offices of Yoshida & Garcia.

The court will allow recovery by Yoshida and Law Office of T. Mae Yoshida in the amount of 50% of the fees and costs requested.

3. Conclusion

Based on the foregoing, the court GRANTS the motion for attorney's fees brought on behalf of Defendants T. Mae Yoshida, Law Office of T. Maye Yoshida, and awards fees in the amount of \$18,654. The court DENIES the motion as to Defendants Shogo J. Garcia and Law Offices of Yoshida & Garcia.

Movants are ordered to give notice.

IT IS SO ORDERED.

DATED: August 11, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court